
Appeal Decision

Site visit made on 20 August 2026

by N Bowden BA(Hons) Dip TP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 9 September 2026

Appeal Ref: 6011803

126 Toms Lane, Kings Langley, Hertfordshire WD4 8NR

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr & Mrs Biesinger against the decision of Three Rivers District Council.
 - The application Ref is 25/2202/FUL.
 - The development proposed is demolition of existing building and construction of replacement and infill dwellings.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. A revised National Planning Policy Framework (the Framework) was published on 17 August 2026. As the changes to the Framework could be considered material to the outcome of the appeal, I consulted the parties in relation to this and have taken these comments, where made, into account in my decision here.
3. I have used the description of development given on the application form in the banner heading above. I have adjusted this to remove reference to the existing building being a “rental dwelling” as this is not an agreed position by the parties and it is not my role in the context of this s78 appeal to determine the veracity of this.

Background and Main Issues

4. The appeal site is within the Green Belt however the parties are in agreement that the proposal is not inappropriate development having regard to policy GB7 of the Framework. Therefore, the main issues are:
 - the effect of the proposed development on the character and appearance of the area,
 - the effect of the proposed development on the living conditions of the occupants of 126a Toms Lane having particular regard to overlooking and whether the development would appear overbearing or visually intrusive, and
 - whether the proposed development would provide satisfactory living conditions for the future occupants considering whether there would be overlooking between the two dwellings.

Reasons

Character and appearance

5. The appeal site comprises a detached chalet bungalow style dwelling which addresses Toms Lane. The property is set on a wide plot and features a deep rear garden which slopes to the rear and leads to an existing detached barn style structure. Toms Lane is a long road which links Kings Langley to Bedmond. It is a highly linear form of development with the majority of homes addressing Toms Lane itself. Homes are commonly detached, with some semi-detached examples, with long rear gardens extending to the rear. There are, nevertheless, exceptions to this form of linear development and these include Seabrook Road and Hilltop Road, High View Mobile Home Park and various other consolidations of farming complexes which have been converted to residential or commercial uses. Even so, the general impression of Toms Lane remains one of a linear form of predominately 20th century development.
6. The proposal seeks permission to construct two additional detached homes to the rear of the existing dwelling. These would be laid out in a tandem fashion with both new homes having their principal elevations facing north west, towards Toms Lane. These would be accessed by way of an existing gravel drive which serves the existing barn structure towards the back of the site.
7. This tandem layout would not follow the pattern of development in the area which is almost exclusively in a linear format. I find this tandem form of development would be alien in appearance and would not be in keeping with development patterns in the area. I have considered the existence of other forms of backland development in the area. However, the majority of these are markedly different in terms of their character. Hilltop Road, Seabrook Road and the unnamed and unmade drive to the rear of 136 to 140 Toms Lane are different as these are much larger areas. In any case, the dwellings that address these roads all have homes directly addressing them and this is consistent with the character of the remainder of Toms Lane. The mobile home park to the west is a substantially larger area and a wholly different form of development that is not comparable to the appeal proposal.
8. I do accept that there are smaller examples of backland development. 124 Toms Lane appears to be a former farm whose origins appear to predate the development of much of Toms Lane. It appears to me that the same rationale also applies to other similar examples at land to the rear of 152 and 172 Toms Lane. The developed parts of these sites are also set a greater distance away from Toms Lane such that they are viewed in a different context. This differs to the appeal site which is an area of garden land that adjoins other similarly deep gardens.
9. A number of appeal decisions have also been brought to my attention. Those along Toms Lane¹ are all set in slightly different contexts. Indeed, from the information provided, these sites all proposed development that was largely surrounded by established built forms on at least three sides. Whereas this site is largely undeveloped to three sides where it is set adjacent to neighbour's gardens or fields. The other appeal examples cited in Maple Cross and Chorleywood are

¹ APP/P1940/W/20/3257184, APP/P1940/W/22/3305196 and APP/P1940/W/24/3350428

likely to be too distant to draw a meaningful comparison as an area's character can vary substantially depending on context.

10. Accordingly, I find that the proposal for two detached dwellings in this location would result in tandem development that would not be in keeping with the pattern of development in the locality. The tandem layout would form an alien addition to the area that would be harmful to its character and appearance contrary to policies CP1 and CP12 of the Three Rivers Core Strategy (TRCS) and policy DM1 and Appendix 2 of the Three Rivers Development Management Policies Local Development Document (TRLDD) and policies AL1, AL2, AL3, AL4, AL5 and AL10 of the Abbots Langley Neighbourhood Plan. This is because it would be backland or tandem development that would not protect the character and amenity of an existing area. This would further mean that the proposal conflicts with paragraph 1 of policy DP3 of the Framework as the proposed dwellings would not respond to their context such as through the arrangement of development plots and buildings in direct conflict with a format of development that is referred to in policy DM1 a) i) of the TRLDD.

Living conditions – 126a Toms Lane

11. The nearest of the proposed dwellings would be located approximately 20 metres away from 126a Toms Lane. Whilst I accept that this is a relatively spacious area that is characterised by wide outlooks, I am unable to conclude that either of the proposed dwellings would be in such close proximity that they would appear intrusive or overbearing.
12. The design of the nearest proposed dwelling, "Garden House," does not feature any first floor windows to habitable rooms. There is one large window that spans both floors to this proposed dwelling, and this serves the entrance hall and landing. However, the upper floor to this is a void and in any case is not a habitable room. Accordingly, being mindful of the distance to 126a, I am not persuaded that there would be a significant increase in overlooking towards this neighbour.
13. As such, the proposal complies with policies CP1 and CP12 of the TRCS and policy DM1 and Appendix 2 of the TRLDD insofar as it maintains acceptable standards of privacy and would not be excessively prominent.

Living conditions – future occupants

14. The proposed dwellings would be arranged with the rear elevation of the Garden House directly facing the rearmost proposed dwelling, "The Barn." Although the barn has no first floor front facing windows to habitable rooms, the Garden House would have a number of windows and balconies facing towards the Barn in proximity. This would result in a degree of overlooking.
15. However, I am mindful that the proposal is intended for family accommodation, and the future occupants would be known to each other. Moreover, any subsequent future, potentially unrelated, occupants would be aware of this situation. On this basis, while I do retain some concerns that there would be some form of overlooking between the two properties, I am not satisfied that there is sufficient harm in this instance to warrant objection to the proposal.
16. I therefore conclude that the proposal would comply with policies CP1 and CP12 of the TRCS and policy DM1 and Appendix 2 of the TRLDD.

Planning Balance and Conclusion

17. Paragraph 5 of policy S5 of the Framework explains, in summary, that where development would not be inappropriate, proposals should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework, and applying paragraph 2 of the policy. Paragraph 2 to policy S5 sets out that the circumstances in which the benefits of approving development proposals are likely to be substantially outweighed by adverse effects. These include, but are not restricted to, situations where the development proposal would fail to comply with one of the national decision-making policies which state that development proposals should be refused in specific circumstances.
18. The Council has expressed that it considers the site to be within the built-up area and therefore, that policy S4 of the Framework applies. I do accept that the site has strong connections to more built-up areas and its character is not dissimilar to a suburban environment. However, the site is designated in the Local Plan as being washed over by the Green Belt. Moreover, whilst the homes and area do have a suburban character, homes frequently back onto open fields and rural areas and this is the case on both sides of the road. Views of fields and rural areas are available in fleeting views from the road but are noteworthy when appreciated in rear gardens. This means the area's character is, whilst transitional in nature, not one that places it into a built-up area.
19. Even if the area is viewed as a built-up area where policy S4 of the Framework would apply, this would mean that the site is not previously developed land in accordance with Annex B of the Framework. Nevertheless, my concerns relating to conflicts with policy DP3 of the Framework and policies of the development plan would remain.
20. The Council accepts that it cannot demonstrate a five year supply of deliverable housing land and this proposal would therefore represent a welcome addition of two new dwellings. Furthermore, the proposal has been put forward as a form of Self-Build and Custom Housebuilding (SBCH) and this would be of assistance in ensuring a sufficient supply of this type of accommodation within the current base period. These factors, in cumulation give substantial weight to the benefits of providing homes. However, the proposal would fail to comply with one of the national decision-making policies, namely paragraph 3 of policy DP3, where there is a clear conflict with policy DM1 of the TRLDD insofar as it relates to the development of backland homes. This policy of the Framework directs that the proposal should be refused.
21. As such, the proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it. Therefore, for the reasons given above the appeal should be dismissed.

N Bowden

INSPECTOR